

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

VISUAL COMFORT & CO., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent*.

DOCKET NO. 24-01

Served: August 20, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON JOINT STATUS REPORT AND SCHEDULING

On August 2, 2024, the parties filed a Joint Status Report and Proposal Regarding Schedule (“Proposal”).¹ In the Proposal, the parties recounted that pursuant to the July 31, 2024 Memorandum Order on Motions to Compel (“Memo on MTC”), Complainant was “generating a proposed ESI protocol for negotiation and agreement, which it expects to provide to Respondent on or around Monday, August 5, 2024.” Proposal at 1-2. Because the protocol was still not resolved, and because Complainant had “recently produced” 53,000 pages of documents, the parties indicated that an extension of the schedule would be necessary but how long an extension was “impossible to predict at this time.” *Id.* at 2. The parties requested deferral of “the requirement to agree on a new schedule” and leave to file another status report and proposed schedule on August 9, 2024. *Id.* This request to file another joint status report with a proposed amended schedule was allowed by email dated August 5, 2024.

On August 9, 2024, the parties filed a Joint Status Report and Proposed Amended Schedule (“JSR”), stating that on August 9, 2024, they “conferred to discuss the ESI protocol, the search terms proposed by Complainant regarding RFD6, and the schedule.” JSR at 1. The JSR proposes an amended schedule that the parties note is “tentative until Respondent determines the number of hits from running the search terms proposed by Complainant.” *Id.* The current schedule is an interim one that was established by Order Setting Conference and Interim Scheduling Order (“Interim Schedule”). Interim Schedule at 2-3.

¹ The Proposal and the JSR that followed, do not contain page numbers. The Initial Order at page 2 states: “All filings and all attachments must have page numbers or they may be rejected.” This oversight has been pointed out in multiple orders. Accordingly, future filings that do not contain page numbers will be rejected.

The parties propose a tentative schedule that substantially exceeds the 150 days contemplated by Rule 141 and which does not provide for briefing to conclude prior to the due date of the initial decision as set by the Commission. 46 C.F.R. § 502.141; JSR at 2; Initial Order at 1, 3. The parties do not directly argue good cause for such a lengthy extension of discovery, but note it will take Respondent time to review the 53,000 documents that Complainant provided and because they only recently conferred on an ESI protocol, rather than doing so at the beginning of discovery, and both parties will need to review the results of the ESI search. Proposal at 2; JSR at 1-2. In terms of the tentative aspect of their proposed amended schedule, the parties note that Respondent “is concerned [if] the number of hits is large, the Parties may need to agree either to narrow the search to yield a number of hits that can be managed with the proposed schedule or to request an additional extension.” JSR at 1.

The Commission set January 6, 2025, as the due date for the initial decision in this proceeding. An Amended Complaint was filed on February 6, 2024, and the Answer was filed on February 20, 2024. On March 8, 2024, the first scheduling order issued noting that the schedule extended beyond 150 days from the service of Respondent’s answer. Scheduling Order at 1-2. While extending beyond the 150-day discovery period, the close of discovery and briefing concluded two and half months prior to the due date of the initial decision. Under the interim schedule, discovery should have closed on August 9, 2024. The tentative amended schedule proposed now would not close discovery until November 18, 2024, and briefing would not conclude until more than a month after the initial decision is due.

The parties have not fully abided by either the original schedule or the interim schedule. *See*, Third Joint Status Report and Request for Extension (where the parties state that they followed the scheduling order only up to April 26, 2024, and they had not yet exchanged any documents); Order Setting Status Conference and Interim Scheduling Order at 1-2; Partial Order on MTC at 1; August 2, 2024 Joint Status Report and Proposal Regarding Schedule (where the parties state they made efforts to comply with the interim schedule by exchanging expert reports and tentatively scheduling depositions). In the three months since the interim scheduling order was established, the parties have largely not followed it.

This proceeding has been significantly delayed by multiple motions and by the parties only recently establishing an ESI protocol. The tentative nature of the proposal to significantly extend discovery seven months into the proceeding is concerning. Because the number of hits for the ESI search is not known, the amended schedule proposal is offered as tentative, and the proposed schedule does not conclude briefing until after the due date of the initial decision. This it is not reasonable and good cause has not been established.

Accordingly, the parties must file a comprehensive joint status report on the date ordered below, explaining the status of the ESI document search and production, and specifying the date on which the search will be or has been completed, how many documents the search has yielded, and by what date those documents will be provided to Complainant. Any delay in completing the search prior to the due date of the joint status report and what the parties will do to address that delay must be explained. The joint status report must also include the number of fact and expert depositions that will be or have been scheduled and the date on which depositions will begin. The parties must make every effort to complete document production without further resort to motions, including cooperatively narrowing the ESI search terms. Finally, the joint

status report must include a new proposal to the amend the schedule. Good cause must be established with specificity if the parties propose an amended schedule that does not allow for an initial decision to issue by January 6, 2025, and the parties should prioritize completing discovery to avoid this. Close of discovery in November is not likely to be approved absent extraordinary circumstances.

The parties are **ORDERED** to submit a joint status report and proposed amended schedule that comports with the above requirements by August 30, 2024.



Linda S. Harris Crovella
Administrative Law Judge